WAKE COUNTY, NC 177
CHARLES P. GILLIAM
REGISTER OF DEEDS
PRESENTED & RECORDED ON
11/01/2018 14:52:32

BOOK:017283 PAGE:02280 - 02284

Instrument Prepared By:	Raleigh City Attorney's Office
Brief Description for Index:	5036 Isabella Cannon Drive
Parcel Identifier:	0337359
Project Name:	Copper Ridge Townhomes Waterline Easement
Mail After Recording To:	City Real Estate Office Post Office Box 590 Raleigh, North Carolina 27602

No Revenue

STATE OF NORTH CAROLINA

COUNTY OF WAKE

DEED OF EASEMENT
WITH GENERAL WARRANTY FOR
WATERLINE EASEMENT

THIS DEED OF EASEMENT is made and executed this 7 day of June, 2018, by Konstantinos David Hemmerly, hereinafter referred to as the "Grantors", with a mailing address of 5036 Isabella Cannon Drive, Raleigh, North Carolina, 27612, to the **CITY OF RALEIGH**, hereinafter referred to as the 'City', with a mailing address of 222 W. Hargett Street, Raleigh, NC, 27601.

WHEREAS, the Grantors are the owners of the property described in the plat recorded at Book of Maps 2005, Page 1708, Wake County Registry (the "Property").

The designation "Grantors" as used herein shall include the singular and plural, as required, and the masculine and neuter gender, as appropriate.

NOW, THEREFORE, for valuable consideration paid to the Grantors, receipt of which is hereby acknowledged, the Grantors have bargained and sold, and do hereby grant, sell and convey unto the City, its successors and assigns, those rights-of-way, privileges, and easements enumerated and described below.

WATERLINE EASEMENT

Subject to the terms and conditions hereof, an easement (the "Waterline Easement") to construct, install, improve, remove, replace inspect, repair, maintain and use a system of pipelines or mains for public water supply and distribution purposes, together with all appurtenant facilities and equipment necessary or convenient thereto, including but not limited to water meter boxes, but expressly excluding the service line that connects any building on the

Property to any water meter (collectively, the "Waterlines"). City agrees to so construct, install, improve, remove, replace inspect, repair, maintain and use the Waterlines connected to and including any water mater (expressly excluding the service line that connects any building on the Property to any water meter) within the Waterline Easement in accordance with its typical and customary standards (the parties acknowledging that the principal Waterlines have previously been installed and that there is no pending installation or construction obligation as of the date hereof).

Further Specific Terms and Conditions applicable to the Waterline Easement are as follows:

a) The Waterline Easement shall be an area measured five (5) feet wide on either side of the centerline of the underground portion of any Waterline located on the Property that is less than four (4) inches in diameter and (ii) ten (10) feet wide on either side of the centerline of the underground portion of any Waterline on the Property that is four (4) inches in diameter or greater and (iii) ten (10) feet wide on either side of the centerline of the underground portion of any Waterline that is four (4) inches in diameter or greater and is located on property that shares a common boundary with the Property, together with an area three (3) feet wide on all sides of the foundation of any water meter box located on the Property.

b) The City is authorized to remove and keep removed from the Waterline Easement all trees, vegetation, and other obstructions as necessary to maintain, repair or protect the Waterlines. The Grantors will, however, be allowed to (1) construct, maintain, and use the easement area for paved or unpaved drives and parking areas; (2) plant and maintain shallow-rooted ground cover material within the easement area; provided all risk of damage to any such improvements caused by maintenance or repair of the Waterlines shall be with the Grantors; and (3) have normal and customary ingress and egress across the surface of the easement area. If the City is required to penetrate the streets in the Waterline Easement or disturb landscaping in the Waterline Easement in the course of maintaining, repairing, replacing, or reconstructing the Waterlines, the City's obligation to repair and restore such streets and landscaping shall be limited to standard, established City practices, specifically, the patching of asphalt or concrete paving, and mulching and/or seeding disturbed landscape areas. The City shall not be required to replace other, more specialized paving materials, or to replace sod, shrubs, trees, and other landscape materials or improvements. The City shall be responsible for repairing or restoring only areas and improvements which are disturbed, and shall not be responsible for pavement or landscape areas not disturbed and outside the immediate work area.

c) Nothing herein shall be construed to grant to the City any right of access through the Property other than that lying within the Waterline Easement herein described and conveyed. Grantor shall not be liable for any negligence or willful misconduct of the City or any representatives, contractors, agents or employees of the City in connection with the use of the easement area or entry thereon.

d) The Grantors shall retain fee simple ownership of the Property; provided however, no use may be made of the Property which materially interferes with the full, reasonable use of the Waterline Easement by the City for water line purposes other than the uses set forth in subsection (a) above.

THE EASEMENT INTERESTS HEREIN DESCRIBED AND CONVEYED ARE LOCATED on a parcel that **[X] does / [ ] does not** include the Grantors' primary residence, but the Grantors' primary residence is not a property interest being conveyed.

TO HAVE AND TO HOLD the above-described permanent easements, running with the land, for the respective purposes enumerated above, unto the City of Raleigh, its successors and assigns, in perpetuity.

The Grantors hereby, for themselves, their heirs, successors, and assigns, hereby warrant and covenant that they are the owners of the Property subject to all matters of record; that they have the right to grant these easements; that the same are free from encumbrances except for any encumbrances of record; and that they will warrant and defend the title to the same against lawful claims of all persons whomsoever arising by, through or under Grantor but not otherwise.

(The balance of the page is intended to be blank.)

IN WITNESS WHEREOF, the Grantors have hereunto set their hands and seals the day and year first above written.

Konstantinos David Hemmerly (SEAL)
Konstantinos David Hemmerly

_____(SEAL)

PROPERTY DESCRIPTION:
AND EASEMENT AREA APPROVED:

W. Wes Wheeler, PE
(Assistant) Public Utilities Director

APPROVED AS TO FORM:

Carolyn A. Bachl
Associate City Attorney

STATE OF NORTH CAROLINA

COUNTY OF WAKE

I, Tammy W. Hopkins, a Notary Public in and for Nash County, State of North Carolina, certify that Konstantinos David Hemmerly personally appeared before me this day and acknowledged the due execution of the foregoing instrument.

WITNESS my hand and notarial seal this the 7th day of June, 2018.

TAMMY W HOPKINS
NOTARY PUBLIC
NASH COUNTY, NC
My Commission Expires 5-20-2020
(SEAL)

Tammy W Hopkins
Notary Public

Tammy W. Hopkins
Notary's printed or typed name

My Commission Expires: 5/20/2020



BOOK:017283 PAGE:02280 - 02284

WAKE
COUNTY
NORTH CAROLINA

Please retain yellow trailer page

It is part of the recorded document and must be submitted with the original for re-recording.

Charles P. Gilliam
Register of Deeds

Wake County Justice Center
300 South Salisbury Street, Suite 1700
Raleigh, NC 27601

☐ New Time Stamp ☐ $25 Non-Standard Fee

☐ Additional Document Fee ☐ Additional Reference Fee

This Customer Group

_____ # of Excessive Entities

_____ # of Time Stamps Needed

This Document

5 # of Pages PS